

RESEARCH PAPER

Revenge Porn (Non-Consensual Intimate Image Sharing) in Nepal:

Recent Trends, Legal Challenges, and Societal Impact (2023–2025)

A Research Paper by :

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Abstract

Non-consensual intimate image sharing (NCIIS), colloquially termed 'revenge porn,' has emerged as one of the most pervasive and damaging forms of technology-facilitated gender-based violence in Nepal during the 2023–2025 period. Nepal's rapid digital transformation—characterized by internet penetration rising from 67.8% in 2023 to an estimated 72.3% in 2024 and the proliferation of smartphones and social media platforms—has created fertile ground for image-based abuse. Yet the country's legal architecture remains structurally ill-equipped to address this harm with the specificity and urgency it demands.

This paper presents a comprehensive, mixed-method review of NCIIS in Nepal, drawing upon police cybercrime statistics, judicial records, media reports, civil society documentation, and secondary academic literature. It analyzes patterns in perpetration and victimization, documents at least four illustrative cases from 2022–2025, evaluates the adequacy of the Electronic Transaction Act 2008 and ancillary legislation, and benchmarks Nepal's legal response against those of India, the United Kingdom, Australia, the United States, and the Philippines.

Findings indicate that reported NCIIS cases increased by approximately 49% between fiscal years 2022–23 and 2023–24, with women and girls aged 15–35 constituting over 85% of identified victims. Structural barriers—including social stigma, victim-blaming cultures, digital illiteracy among law-enforcement officers, and the transnational nature of online platforms—significantly impede justice. The paper concludes with targeted policy recommendations including the enactment of a standalone NCIIS statute, the establishment of a dedicated cybercrime victim-support unit, mandatory platform-cooperation protocols, and curriculum-embedded digital-safety education.

Word count: approximately 9,500 words (excluding references and tables).

1. Introduction

1.1 Defining Revenge Porn and Non-Consensual Intimate Image Sharing

The term 'revenge porn'—while widely recognized in popular discourse—is increasingly regarded by scholars and advocates as inaccurate and misleading. It implies that the conduct is confined to post-relationship retribution and that some form of 'pornography' is involved, thereby inadvertently normalizing or trivializing the act (Hall & Hearn, 2019). The preferred academic and legal term is non-consensual intimate image sharing (NCIIS), which more precisely captures the essential harm: the distribution, publication, or threatened dissemination of sexually explicit or intimate images of a person without that person's consent (McGlynn & Rackley, 2017).

NCIIS encompasses a wide spectrum of conduct: the sharing of images originally created consensually within a relationship; the distribution of images obtained through hacking, covert recording, or deceit; the use of such images as instruments of coercion, extortion, or harassment (often called 'sextortion'); and, increasingly, the generation of synthetic intimate images using artificial intelligence deepfake technology (Henry et al., 2020). In all its forms, the defining characteristic is the absence of the depicted person's consent to the wider distribution of the image.

1.2 Background: Cybercrime in Nepal

Nepal's relationship with the digital world has expanded dramatically over the past decade. The country's telecommunications regulator, the Nepal Telecommunications Authority (NTA), reported that internet subscriptions crossed 36 million by mid-2024, corresponding to a penetration rate of approximately 72% (NTA, 2024). Social media platforms—particularly Facebook, TikTok, YouTube, Instagram, and messaging applications such as Viber, WhatsApp, and Messenger—have become ubiquitous features of daily life, particularly among young Nepali users.

This digital expansion has been accompanied by a steep increase in cybercrime. The Nepal Police Cybercrime Investigation Unit (NPCIB) reported a total of 5,438 cybercrime complaints in fiscal year 2023–24, representing a year-on-year increase of approximately 34% (Nepal Police, 2024). Among these, crimes involving online sexual harassment, intimate image abuse, and sextortion constitute an increasingly prominent share. Civil society organizations such as the Forum for Women, Law and Development (FWLD) and Aawaaz Nepal document cases that never

enter the formal reporting pipeline, suggesting that official statistics substantially undercount the true incidence of NCIIS.

1.3 Importance in Nepal's Social and Digital Context

Nepal occupies a distinctive socio-cultural position that amplifies the harms associated with NCIIS. Despite constitutional guarantees of gender equality and the passage of significant women's rights legislation in recent years, deeply patriarchal social norms persist across much of the country. Sexuality, particularly female sexuality, remains intensely stigmatized; the 'honor' of a woman and, by extension, her family, is frequently perceived to be bound to her perceived sexual purity. When intimate images of a woman are exposed—regardless of how those images came to be—the social consequences for the victim can be catastrophic, including social ostracism, forced marriage or divorce, expulsion from education, economic marginalization, and in the most extreme cases, suicide (FWLD, 2023).

The intersection of a conservative social environment with rapidly expanding digital access creates a compounding risk: more people are exposed to the possibility of NCIIS, while the cultural penalties for victimization remain severe enough to ensure widespread underreporting and perpetuate a cycle of impunity. This dynamic makes Nepal a particularly important site for studying NCIIS and for developing context-sensitive legal and social responses.

1.4 Research Objectives and Questions

This paper pursues four principal objectives:

- To document and analyze recent trends in NCIIS in Nepal, with particular focus on the 2023–2025 period;
- To evaluate the adequacy of Nepal's existing legal framework in addressing NCIIS;
- To examine the societal and psychological impacts of NCIIS on victims;
- To propose evidence-based legal and policy reforms appropriate to Nepal's socio-cultural context.

These objectives are pursued through the following research questions:

- RQ1: What are the observable trends in the incidence, patterns, and platforms associated with NCIIS in Nepal between 2023 and 2025?
- RQ2: To what extent does Nepal's existing legal framework adequately criminalize, prosecute, and sanction NCIIS?

- RQ3: What are the primary structural and cultural barriers to justice for NCIIS victims in Nepal?
- RQ4: What legislative, institutional, and educational reforms are most urgently needed to address NCIIS in Nepal?

2. Literature Review

2.1 Global Overview of Revenge Porn / NCIIS

Academic attention to NCIIS accelerated sharply after a series of high-profile cases in the United States, United Kingdom, and Australia in the early 2010s. Hall and Hearn (2019) situate NCIIS within a broader continuum of sexual violence, arguing that it shares the same logic of dominance, control, and humiliation that characterizes other forms of gendered abuse. McGlynn and Rackley (2017) develop the concept of 'image-based sexual abuse,' which usefully encompasses both non-consensual sharing and the credible threat of sharing, recognizing that the harm can be realized through threat alone.

Henry, Flynn, and Powell (2020) conducted one of the most comprehensive surveys of NCIIS prevalence in English-speaking countries, finding that approximately one in six respondents reported experiencing image-based sexual abuse in some form, with women disproportionately represented among victims. Their work emphasizes the multi-modal nature of the harm: reputational damage, emotional distress, economic consequences, and in severe cases, post-traumatic stress disorder equivalent in magnitude to that associated with offline sexual violence.

From a legal perspective, Citron and Franks (2014) pioneered the scholarly argument for standalone NCIIS criminalization, contending that existing laws (prohibiting harassment, stalking, or obscenity) were systematically inadequate to address the specific harms of image-based abuse. Their framework has proven highly influential in subsequent legislative reform debates across multiple jurisdictions.

2.2 Studies on Cybercrime and Online Gender-Based Violence

The wider literature on online gender-based violence provides important contextual framing. Dragiewicz et al. (2018) document how technology-facilitated abuse frequently operates as an extension of intimate partner violence, noting that digital tools lower the cost of perpetrating harassment while dramatically expanding its reach and permanence. Lumsden and Morgan (2017) examine the 'pile-on' dynamics of online abuse, in which a single incident of image sharing can trigger amplified harassment from strangers who encounter the images online.

Research on sextortion—the use of intimate images or the threat of their release as an instrument of extortion—has grown considerably. The Internet Watch Foundation (2023) and the Cyber Civil

Rights Initiative (2024) both document rapid increases in sextortion cases globally, with the Philippines, West Africa, and increasingly South Asia identified as hotspots. The nexus between NCIIS and financial crime is particularly pronounced in Nepal, where sextortion schemes targeting young men and women are documented by the Nepal Police (2024) and Aawaaz Nepal (2023).

2.3 South Asian Context

The South Asian literature on NCIIS is comparatively sparse but growing. In India, Basu and Bhatt (2022) analyze the limitations of Section 66E and Section 67A of the Information Technology Act 2000 in addressing image-based abuse, arguing that the provisions are over-broad in some respects and under-specific in others, and that enforcement is severely hampered by police attitudes toward victims. The Bachpan Bachao Andolan and the Internet Freedom Foundation (India) have documented the particular vulnerability of minors to image-based grooming and abuse in online contexts.

In Pakistan, Shahbaz (2021) examines the Prevention of Electronic Crimes Act 2016, which includes specific provisions on non-consensual sharing of intimate images, and finds that while the legal framework is more advanced than Nepal's, enforcement gaps and victim stigmatization remain severe barriers to justice. In Bangladesh, systematic academic attention to NCIIS remains limited; the most substantial documentation comes from organizations such as Ain o Salish Kendra and Manusher Jonno Foundation.

Sri Lanka presents a partial comparator to Nepal: despite similar cultural conservatism and comparable levels of digital penetration, it enacted the Computer Crimes Act 2007 and subsequent regulations that offer partial coverage of NCIIS, though again enforcement is inconsistent (Fernando, 2020).

2.4 Nepal-Specific Literature and Research Gaps

Academic literature specifically addressing NCIIS in Nepal is extremely limited. The most substantive contributions come from legal advocacy organizations rather than the academy. The Forum for Women, Law and Development (2023) published a policy brief documenting 47 cases of image-based abuse handled through its legal aid service over a two-year period and identified critical gaps in the Electronic Transaction Act 2008. Aawaaz Nepal (2023), a digital rights organization, publishes annual reports on online gender-based violence that include case documentation and policy recommendations but lack systematic quantitative analysis.

Academic theses from Tribhuvan University and Kathmandu School of Law have addressed related topics—cybercrime law, online harassment, and women's digital rights—but rarely examine NCIIS as a discrete phenomenon deserving dedicated legal attention. This represents a significant research gap that this paper seeks to partially address.

The absence of a dedicated epidemiological study of NCIIS in Nepal, the lack of a national victim registry, and the fragmented nature of administrative data across police, courts, and civil society organizations constitute the primary information constraints that this study navigates.

3. Methodology

3.1 Research Design

This study employs a qualitative-dominant mixed methodology. The primary approach is interpretive documentary analysis, supplemented by descriptive quantitative analysis of available statistical data. Given the absence of primary survey data from Nepal on NCIIS—itself a reflection of the research gap identified in the literature—the paper relies on a triangulated synthesis of multiple secondary data sources.

3.2 Data Sources

The following data sources were consulted:

- Nepal Police Cybercrime Investigation Bureau (NPCIB) Annual Reports (2018–19 to 2023–24): providing aggregate statistics on cybercrime complaints, arrests, and case dispositions;
- Supreme Court of Nepal and District Court case records: for judicial outcomes in relevant prosecutions;
- Forum for Women, Law and Development (FWLD) case documentation and policy publications (2021–2024);
- Aawaaz Nepal Annual Digital Rights Reports (2022, 2023);
- National Human Rights Commission (NHRC) thematic reports on technology-facilitated violence;
- Nepal Telecommunications Authority (NTA) quarterly regulatory data on internet and social media usage;
- Major Nepali newspapers (The Kathmandu Post, Republica, Nagarik, and online portals including Setopati, Onlinekhabar) for case reporting;
- Parliamentary records and committee reports pertaining to digital and cybercrime legislation;
- Peer-reviewed academic literature accessed through Google Scholar, JSTOR, and SSRN;
- Comparative legislative texts from India, United Kingdom, Australia, United States, and Philippines.

3.3 Case Study Selection

Case studies were selected on the basis of three criteria: (1) documented public reporting in credible Nepali media; (2) illustrative value in demonstrating distinct patterns of NCIIS conduct and response; and (3) availability of sufficient detail to permit meaningful analysis. All case studies

are drawn from reported sources; where identifying details could further harm victims, they are omitted or generalized in accordance with ethical research practice.

3.4 Limitations

This study is subject to several important limitations. First, official statistics almost certainly represent a fraction of actual NCIS incidence; the 'dark figure' of unreported cases is likely large. Second, newspaper and civil society case documentation is subject to selection bias—cases with unusual features or high-profile elements are more likely to be reported. Third, the absence of victim-interview data limits the capacity to assess subjective impacts comprehensively. Fourth, platform-level data on image removal, reporting, and user conduct is not publicly available for Nepal. These limitations are acknowledged throughout and inform the paper's recommendations regarding improved data collection.

4. Digital Growth and Cybercrime in Nepal

4.1 Internet and Social Media Penetration

Nepal's digital transformation has been among the most rapid in South Asia, driven by affordable smartphone hardware, competitive mobile data tariffs, and infrastructure expansion under successive national broadband plans. The Nepal Telecommunications Authority (2024) reports that internet users grew from approximately 7 million in 2018 to over 23 million in 2024, representing a more than threefold increase in six years. Mobile internet dominates: over 94% of internet users access the network via smartphone, a demographic pattern with profound implications for social media use and cybercrime exposure.

Facebook remains the dominant social media platform by user count, with approximately 22 million registered accounts in Nepal as of 2024—a figure that arguably exceeds the actual number of internet users because many individuals maintain multiple accounts (NTA, 2024; Meta, 2024). TikTok's user base expanded dramatically following its mainstream adoption during the COVID-19 pandemic period (2020–2021), and it is now estimated to have between 8 and 12 million regular Nepali users, heavily skewed toward the 15–30 age cohort. YouTube, Instagram, Viber, and WhatsApp complete the dominant platform landscape.

Table 1 presents key indicators of Nepal's digital expansion from 2018 to 2024.

Table 1: Nepal Digital Growth Indicators 2018–2024

Year	Internet Penetration	Internet Users	Facebook Users	TikTok/Other Platform Users
2018	23.0%	~7 million	5.8 million	~1.2 million
2019	34.2%	~10 million	8.5 million	~2.5 million
2020	43.1%	~12 million	11.2 million	~4.8 million
2021	52.7%	~16 million	14.6 million	~8.3 million
2022	61.4%	~19 million	17.9 million	~11.5 million
2023	67.8%	~21 million	20.1 million	~14.0 million
2024	72.3%	~23 million	22.0 million	~16.5 million

Sources: Nepal Telecommunications Authority (2024); Internet World Stats (2024); DataReportal Nepal Digital Report (2024). Note: TikTok figures are estimated from multiple sources as official platform data for Nepal is not published.

4.2 Digital Expansion and the Cybercrime Nexus

The correlation between digital penetration and cybercrime incidence is not coincidental. As more Nepalis—particularly young, first-generation internet users in rural and peri-urban areas—come online with limited digital literacy and limited understanding of privacy settings, data security, and consent in digital contexts, their vulnerability to image-based abuse increases. Several structural factors compound this risk.

First, the social function of smartphones has expanded to encompass romantic relationship management, including the consensual sharing of intimate images within relationships. Second, the permanence and viral capacity of digital content means that once an image is shared, it can be redistributed instantly and at scale. Third, the pseudonymous or anonymous operation of many social media accounts creates an environment of reduced accountability for perpetrators. Fourth, platform content moderation in Nepali-language contexts is demonstrably weaker than in English-language settings, meaning harmful content circulates longer before removal.

The Nepal Police Cybercrime Investigation Bureau identifies a statistically significant correlation between fiscal years of high social media platform adoption growth and subsequent spikes in image-based harassment complaints. The COVID-19 lockdowns of 2020–2021, which drove unprecedented digital activity, appear to have produced a structural shift upward in cybercrime baseline levels from which reported incidents have not retreated (Nepal Police, 2022).

5. Understanding Revenge Porn in Nepal

5.1 Common Patterns of Conduct

Analysis of available case records and civil society documentation reveals several recurring patterns in NCIIS in Nepal:

Intimate Partner NCIIS:

The most frequently documented pattern involves the non-consensual sharing of images originally created within a romantic or sexual relationship, typically following relationship breakdown. A former partner—predominantly male—shares or threatens to share intimate images of a current or former girlfriend or wife, often with the stated or implied motive of retaliation, coercion to resume the relationship, or simple desire to damage the victim's reputation.

Sextortion:

A distinct but overlapping pattern involves the use of intimate images—or the credible threat of their creation through deceptive persuasion to produce them—as leverage for financial extortion or behavioral coercion. This pattern is increasingly documented in Nepal, with organized criminal networks based within Nepal and abroad targeting both men and women. The Cyber Bureau (2024) reports a 67% increase in sextortion complaints between FY 2022–23 and FY 2023–24.

Hacking and Unauthorized Access:

Cases in which perpetrators gain unauthorized access to a victim's phone, cloud storage, or social media accounts to obtain intimate images are documented in both police records and NGO case files. This pattern disproportionately victimizes individuals with weak password hygiene or who share device access with abusive partners.

Non-Intimate Covert Recording:

A smaller but significant category involves images or videos recorded without the subject's knowledge—in bathrooms, bedrooms, or changing rooms—using hidden cameras or smartphone cameras. Cases of this type involve a distinct harm: the victim was never a participant in a consensual intimate interaction, making the original creation of the material itself a violation separate from its distribution.

5.2 Platforms Used

The platforms most frequently identified in NCIIS cases in Nepal reflect the country's social media landscape. Facebook and Facebook Messenger are implicated in the greatest number of cases by volume, consistent with their dominant market position. Cases typically involve either direct sharing of images within closed groups or public pages, or private threats communicated via Messenger. TikTok has emerged as a particularly significant vector since 2021, with cases involving the uploading of intimate content to TikTok accounts or manipulation of victims through TikTok-facilitated social engineering.

WhatsApp and Viber are frequently used for direct threat communication and for coordinated sharing within group chats. Telegram, which has grown rapidly in Nepal since approximately 2022, presents particular law enforcement challenges because of its strong end-to-end encryption and the prevalence of anonymous channels on which explicit content is shared. Onlinekhabar (2024) and The Kathmandu Post (2024) report specific cases involving Telegram-based networks sharing non-consensual images of Nepali women.

5.3 Profiles of Victims and Perpetrators

Available data on victim profiles consistently indicates that women and girls constitute the overwhelming majority of NCIIS victims in Nepal. FWLD (2023) reports that in its caseload, 91% of identified victims were female. Age data, where available, places the largest victim cohort in the 15–25 age range, followed by the 25–35 range. Victims come from across Nepal's social geography—urban and rural, educated and less-educated—though cases from peri-urban and rural areas may be particularly under-reported due to police inaccessibility and stronger social pressure against disclosure.

Perpetrators are predominantly known to their victims: former romantic partners, current partners in abusive relationships, family members (in cases of coercive control), and, in sextortion cases, organized criminal actors who are typically strangers. The demographic profile of non-organized perpetrators leans heavily toward males aged 18–35, though female perpetrators are documented in a minority of cases, typically targeting other women in contexts of social rivalry or jealousy.

6. Recent Trends (2023–2025)

6.1 Growth in Reported Cases

Official data from the Nepal Police Cybercrime Investigation Bureau indicates a consistent and significant upward trend in NCIIS-related complaints across the 2023–2025 period. Table 2 presents the aggregate cybercrime statistics that contextualise NCIIS within the broader cybercrime landscape.

Table 2: Nepal Cybercrime Statistics and NCIIS Cases, FY 2018–19 to FY 2023–24

Fiscal Year	Total Cybercrimes	Online Gender-Based Violence	NCIIS / Revenge Porn Cases	Blackmail Cases	Arrests Made	Conv. Rate
2018–19	1,162	274	46	71	34	33%
2019–20	1,506	381	68	102	49	35%
2020–21	2,109	578	104	134	67	38%
2021–22	3,244	891	187	201	104	40%
2022–23	4,071	1,284	276	289	158	42%
2023–24	5,438	1,876	412	387	231	45%

Sources: Nepal Police Cybercrime Investigation Bureau Annual Reports (2018–2024); FWLD Case Documentation (2023); Aawaaz Nepal (2023). Note: 'NCIIS / Revenge Porn Cases' figures include only complaints formally classified under image-based abuse categories; actual incidence is likely substantially higher. 'Conviction Rate' reflects proportion of filed charge sheets resulting in conviction.

The data reveals several important trends. Total cybercrime complaints more than tripled between FY 2018–19 and FY 2023–24. Within this overall increase, online gender-based violence complaints grew at a faster rate than total cybercrime, increasing from 274 in FY 2018–19 to 1,876 in FY 2023–24—a 585% increase over the period. NCIIS and revenge porn-specific cases increased from 46 to 412 over the same period, representing an 800% increase, though definitional consistency across years cannot be guaranteed given changes in police recording practices.

6.2 Social Media Virality and the Amplification of Harm

A particularly concerning trend documented in 2023–2025 is the use of social media virality as an intentional weapon in NCIS. Rather than sending intimate images directly to a victim's social circle—the traditional pattern—perpetrators increasingly post or share content on public or semi-public platforms designed for maximum reach, timing the release for maximum reputational damage (for example, around examination periods, wedding preparations, or professional appointments).

The Kathmandu Post (2024) reported on multiple cases in which images spread to tens of thousands of viewers within hours of being posted, with platform take-down requests taking between 24 and 72 hours to be acted upon—a window sufficient for extensive secondary sharing and archiving. Civil society organizations note that this viral dimension fundamentally alters the harm calculus: the psychological injury of having one's intimate images seen by an intimate circle is qualitatively different from, but compounded by, awareness that strangers, colleagues, and community members may have accessed the images.

6.3 Emerging Patterns: Deepfakes and AI-Generated Content

While AI-generated deepfake content is not yet quantitatively dominant in Nepal's NCIS landscape, its emergence represents one of the most alarming recent trends. Reports in 2024 documented cases in which the faces of identifiable Nepali women were superimposed onto sexually explicit images using freely available deepfake applications, creating convincingly realistic 'intimate images' of individuals who had never created or participated in any such content (Onlinekhabar, 2024; The Record, 2024).

This development poses acute legal challenges: Nepal's existing legislation is poorly equipped to address images that are synthetic rather than genuine, and the harms to reputation and emotional wellbeing are arguably as severe as those arising from authentic images.

6.4 Case Studies

Case Study 1: Sindhupalchok District Case (2023)

In 2023, a twenty-two-year-old woman from Sindhupalchok district reported to the District Police Office that her former boyfriend, following the end of their relationship, had shared intimate images of her via WhatsApp groups linked to their shared community. Within 48 hours, the images had circulated broadly in the district's social media networks. The victim reported intense psychological distress, was unable to leave her home for several weeks, and experienced severe

social ostracism. Her family faced community pressure to 'resolve' the matter privately, and she was initially dissuaded from filing a formal complaint.

After assistance from a local women's rights organization, a complaint was filed under Section 47 of the Electronic Transaction Act 2008 and Section 11 of the Individual Privacy Act 2018. The accused was arrested within two weeks. However, the case took fourteen months to conclude at the District Court level, during which time the victim reported ongoing harassment from the accused's family members. A conviction was ultimately obtained with a fine of NPR 50,000 and a six-month suspended sentence—a disposition that civil society organizations criticized as inadequate relative to the harm caused (FWLD, 2023).

Case Study 2: Kathmandu Sextortion Network (2024)

In early 2024, the Nepal Police Cybercrime Investigation Bureau dismantled a sextortion operation based primarily in Kathmandu, with alleged links to organized criminal networks in India and West Africa. The network targeted young professionals—both male and female—by creating fake social media profiles, establishing online relationships, inducing victims to share intimate images or engage in video calls, and subsequently threatening to distribute images unless payment was made, typically in cryptocurrency or via mobile payment platforms.

Twelve individuals were arrested in connection with the operation, and investigations revealed that at least 87 Nepali individuals had been victimized, though investigators believed the actual number was significantly higher. Total extortion proceeds were estimated at NPR 12 million (approximately USD 90,000). The case highlighted several enforcement challenges: the use of cryptocurrency complicating asset tracing, the involvement of foreign nationals creating jurisdictional complications, and the extreme reluctance of many victims to be identified in legal proceedings (Nepal Police, 2024; The Kathmandu Post, 2024).

Case Study 3: Teacher-Student Case, Kaski District (2023)

A particularly disturbing case documented by Aawaaz Nepal (2023) involved a secondary school teacher in Kaski district who covertly installed video recording software on a school-owned tablet computer used in a private tutorial setting. Over a period of approximately eight months, the teacher recorded intimate footage of multiple female students, who were between fifteen and seventeen years of age. The footage was subsequently used to coerce continued sexual abuse and, in at least two documented instances, to demand money from families.

The case came to light when one victim confided in a parent, who approached the school administration. Police were eventually notified, but the initial school response involved an attempt to manage the situation internally to avoid 'scandal'—a response pattern documented in multiple Nepali institutional contexts. The teacher was arrested and charged under the Electronic Transaction Act and the Children's Act 2018, though prosecutors also sought to apply provisions of the Criminal Code relating to sexual offences against minors. Legal proceedings were ongoing as of the time of writing, but the case exposed critical failures in institutional safeguarding and reporting obligations.

Case Study 4: Viral Image Case, Social Media (2024)

In mid-2024, a synthetic intimate image—apparently created using a deepfake application—depicting a prominent young female social activist from Kathmandu was widely circulated on TikTok and Telegram. The victim reported the content to the Nepal Police Cybercrime Investigation Bureau, to the relevant platforms, and to the Press Council Nepal, and publicly identified herself as the victim in a statement aimed at destigmatizing the experience and demanding legal reform.

TikTok removed the content within 36 hours after a formal complaint; Telegram channels proved more resistant, with some content remaining accessible for over a week. The case attracted substantial media attention and generated significant public discourse about the adequacy of Nepal's laws in addressing synthetic intimate images. Nepal Police confirmed that an investigation was opened but noted that the originator of the deepfake content had not been identified as of the time of reporting, highlighting the forensic challenges of tracing synthetic content creation (Onlinekhabar, 2024).

7. Legal Framework in Nepal

7.1 Primary Legislative Instruments

Nepal's response to NCIIS is currently constructed from a patchwork of general cybercrime and privacy provisions rather than any legislation specifically addressing image-based abuse. The principal instruments are:

7.1.1 Electronic Transaction Act 2008 (ETA 2063 B.S.)

The Electronic Transaction Act (ETA) is Nepal's foundational cybercrime statute. Section 47 of the ETA criminalizes 'computer-based illegal acts' including publishing 'material of a criminal nature' in electronic form, including material that is 'illegal, indecent, or contrary to public morality.' The provision carries a maximum penalty of five years' imprisonment and a fine of NRs 100,000. Section 44 specifically addresses unauthorized publication of personal data.

While Section 47 has been used in a number of NCIIS prosecutions—including some of the cases documented in Section 6 above—the provision is problematically broad in its framing. The criminalization of 'indecent' or 'contrary to public morality' content introduces a normative standard that could theoretically be applied to consensual intimate expression, conflates the harm of non-consent with a judgment about the nature of the content itself, and fails to center the victim's lack of consent as the essential element of the offence. Legal scholars at Kathmandu School of Law (2023) have argued that this framing is constitutionally suspect given Nepal's constitutional right to privacy and the Supreme Court's increasing application of rights-based analysis.

7.1.2 Individual Privacy Act 2018 (Byaktigat Gupta Ta Sambandhi Ain 2075 B.S.)

The Individual Privacy Act 2018 represents a significant development in Nepal's data protection and privacy law framework. Section 11 establishes a right to privacy of personal information, including information about the body, and Section 19 creates civil and criminal liabilities for unauthorized disclosure of private information. The Act has been applied in some NCIIS cases as a supplementary charge alongside ETA provisions.

However, the Individual Privacy Act is primarily oriented toward data protection rather than criminal accountability for sexual image abuse. Its civil remedies are under-utilized due to victims' lack of legal resources and awareness, and its criminal penalties—fines up to NRs 25,000 and

imprisonment up to one year—are generally regarded as inadequate relative to the harm of NCIIS (FWLD, 2023).

7.1.3 National Penal Code (Muluki Ain / Criminal Code 2017)

The Criminal Code 2017 (effective 2018) contains provisions on sexual offences, privacy invasion, and harassment that may apply in NCIIS contexts. Section 106 addresses sexual harassment, and the Code contains provisions on recording or distributing recordings of a person without consent. However, these provisions were drafted without specific reference to the NCIIS context and contain definitional ambiguities that create uncertainty in application.

7.1.4 Children's Act 2018

The Children's Act 2018 provides additional protection for minors, including provisions addressing child sexual abuse material. In NCIIS cases involving victims under eighteen, prosecutors may invoke the Children's Act alongside ETA provisions. The Act mandates higher penalties where victims are children, aligning with international standards on child sexual exploitation.

7.2 Gaps in Current Legal Framework

Analysis of the above instruments reveals five critical gaps:

- **Absence of a consent-centered definition of NCIIS:** No existing Nepali statute defines NCIIS with reference to the absence of the depicted person's consent as the central element of the offence. This creates evidential and interpretive difficulties in prosecution.
- **No criminalization of threats:** Threatening to share intimate images—without actually doing so—is not clearly criminalized as a standalone offence in Nepali law, though coercion provisions in the Criminal Code may apply in some circumstances.
- **No takedown obligation:** There is no statutory obligation on internet service providers or social media platforms to remove NCIIS content within a specified timeframe upon notification.
- **Inadequate penalties:** The maximum penalties available under the ETA (five years) may be insufficient relative to the severity of harm in the most serious cases, and the fine ceiling (NRs 100,000 ≈ USD 750) is widely regarded as too low to act as a deterrent.
- **No victim support obligations:** Unlike jurisdictions such as the United Kingdom (under the Online Safety Act 2023) or Australia (under the Online Safety Act 2021), Nepal has no statutory framework mandating victim support services or establishing a public body with specific responsibilities for NCIIS complaint resolution.

7.3 International Legal Benchmarking

Table 3 provides a comparative overview of NCIIS legal frameworks in selected jurisdictions, benchmarking Nepal's approach against more developed regulatory environments.

Table 3: Comparative Legal Framework for NCIIS — Selected Jurisdictions

Country	Relevant Legislation	Key Penalties	Specific NCI Law	Dedicated Support Body
Nepal	ETA 2008, ITCA 2063 (partial coverage)	Up to 5 years, NRs 100,000 fine	No	None
India	IT Act 2000 (S.66E, S.67A) + BNS 2023 (S.77,78)	3–7 years imprisonment	Partial	National Cyber Crime Reporting Portal
United Kingdom	Criminal Justice and Courts Act 2015, OIIA 2023	Up to 2 years (2015); 5 years (deepfakes)	Yes	Revenge Porn Helpline
Australia	Enhancing Online Safety Act 2015, Criminal Code	Up to 5 years; civil orders	Yes	eSafety Commissioner
USA	46 state laws (no federal law)	Varies by state (1–5 years)	Partial	Cyber Civil Rights Initiative
Philippines	Anti-Photo and Video Voyeurism Act 2010	3–7 years; fines up to PHP 500,000	Yes	PNP Anti-Cybercrime Group

Sources: Compiled from national legislative texts and comparative analyses by McGlynn et al. (2021); Citron (2023); and Asian Law Centre (2024).

The comparative analysis reveals that Nepal lags significantly behind peer jurisdictions in several dimensions: specificity of legislation, adequacy of penalties, availability of dedicated victim support, and procedural mechanisms for rapid content removal. India's enactment of standalone provisions in the Bharatiya Nyaya Sanhita 2023 is particularly relevant as a regional comparator with obvious cultural and legal proximity to Nepal.

8. Challenges in Law Enforcement

8.1 Digital Evidence and Forensic Capacity

Effective prosecution of NCIIS cases depends critically on the preservation and forensic analysis of digital evidence—metadata embedded in image files, server logs, IP address records, account registration information, and device data. Nepal's police cybercrime units face substantial capacity constraints in all of these areas. The Nepal Police Cybercrime Investigation Bureau operates with a relatively small team of technically trained investigators concentrated in Kathmandu; capacity at district and local police levels is minimal.

The evidential challenges are compounded by perpetrators' increasing use of virtual private networks (VPNs), encrypted messaging platforms, temporary accounts, and cryptocurrency payment systems that are designed to frustrate attribution. Legal mechanisms for compelling foreign platforms to preserve and disclose user data—via Mutual Legal Assistance Treaties (MLATs) and informal law enforcement cooperation channels—are slow, bureaucratically demanding, and often yield results only after relevant data has been deleted in accordance with platforms' retention policies.

8.2 Cross-Border Dimensions

A significant and growing proportion of NCIIS cases in Nepal involve cross-border elements: perpetrators operating from abroad (particularly India, but also increasingly from Africa and Southeast Asia in organized sextortion operations), content hosted on foreign servers, and platforms incorporated in third-country jurisdictions. Nepal has bilateral MLATs with a limited number of countries; its cybercrime-specific international cooperation framework is underdeveloped relative to the scale of the challenge.

The Budapest Convention on Cybercrime, which provides an established multilateral framework for international cybercrime cooperation and to which over 70 states are party, has not been acceded to by Nepal. Civil society organizations and legal scholars have repeatedly recommended accession as a priority for strengthening international enforcement cooperation (Aawaaz Nepal, 2023; KSL, 2023).

8.3 Underreporting: Stigma, Fear, and Institutional Distrust

Perhaps the most significant law enforcement challenge is the systematic underreporting of NCIIS cases. Multiple factors contribute to this:

Social stigma and victim blaming are pervasive. In many Nepali social contexts, the exposure of intimate images of a woman is perceived as a reflection of the woman's own moral failing rather than as a crime perpetrated against her. Victims frequently report that their first concern upon discovering a violation is not securing criminal justice but managing family and community reactions (FWLD, 2023). The fear of parental or spousal response—in some cases more feared than the original violation—is a powerful deterrent to reporting.

Police attitudes toward NCIIS victims have been documented as problematic in multiple cases. Victims describe experiences of disbelief, victim-blaming questioning ("Why did you send such images?"), and implicit discouragement from proceeding with complaints. While Nepal Police has made efforts to improve gender-sensitive policing through training programs, systemic cultural change within the institution has been slow (NHRC, 2023).

Privacy concerns also operate paradoxically as a barrier to reporting. Victims who report to police must disclose the existence and nature of the intimate images involved, which they may experience as a further violation of their privacy. The absence of confidentiality provisions specific to NCIIS complaints—analogueous to those available to complainants in rape proceedings in many jurisdictions—compounds this concern.

9. Gender and Social Impact

9.1 Differential Impact on Women and Girls

NCIIS is not a gender-neutral phenomenon in Nepal. The documented evidence overwhelmingly shows that women and girls bear the vast preponderance of harm, while men constitute the majority of perpetrators. This gender asymmetry reflects and reproduces broader structures of patriarchal power and sexual double standards: a man whose intimate images are circulated may experience embarrassment or distress, but the social consequences are rarely comparable to those facing women.

For Nepali women and girls, the exposure of intimate images can trigger a cascade of consequences that are simultaneously social, economic, psychological, and physical. Families may forcibly withdraw daughters from educational institutions, both to prevent further exposure and in response to social pressure from the community. Employment prospects can be severely damaged if employers or professional colleagues become aware of the violation. In rural and conservative contexts, victims may find themselves unmarriageable in a society where marriage remains a primary social institution for many women.

9.2 Psychological Consequences

The psychological impact of NCIIS is documented in the international literature as severe and persistent. Henry et al. (2020) find that victims commonly experience symptoms equivalent to post-traumatic stress disorder, including hypervigilance, intrusive thoughts, avoidance behavior, and emotional dysregulation. Depression, anxiety disorders, and suicidal ideation are documented with significantly elevated prevalence in NCIIS victim populations compared to non-victim peers.

In Nepal's context, the psychological burden is amplified by the additional weight of social shame, family pressure, and institutional indifference. FWLD (2023) documents several cases in which victims—primarily young women—experienced significant psychological breakdowns, required hospitalization, or attempted suicide. Mental health support services for NCIIS victims are extremely limited in Nepal; no specialist service dedicated to image-based abuse victims exists, and general mental health services are themselves under-resourced.

9.3 Economic Consequences

The economic consequences of NCIIS are under-documented but likely substantial. Education disruption, forced relocation, and employment discrimination all translate into measurable economic harm. In sextortion cases, the direct financial harm of payments made under coercion is quantifiable—Nepal Police (2024) estimates that documented sextortion payments by Nepali victims in the 2023–24 period totaled approximately NPR 45 million (approximately USD 338,000), though this figure is itself likely an undercount.

9.4 Cultural Stigma and the Cycle of Impunity

Cultural stigma around NCIIS in Nepal operates in a self-reinforcing cycle that entrenches impunity for perpetrators. Victims' reluctance to report reduces the likelihood of perpetrators facing legal consequences, which in turn signals to potential perpetrators that NCIIS is low-risk conduct. The absence of high-profile prosecutions and convictions—particularly among perpetrators from relatively privileged social backgrounds—reinforces the perception that the law does not effectively apply to this conduct.

This cycle of impunity is further sustained by media coverage that frequently focuses on the nature of the images rather than the conduct of the perpetrator, inadvertently reproducing the victim-blaming narrative. Responsible journalism guidelines adopted by some Nepali outlets have begun to shift this pattern, but inconsistent application remains a concern (Press Council Nepal, 2023).

10. Role of Media, Technology, and Digital Literacy

10.1 Responsibilities of Social Media Platforms

Social media platforms bear significant responsibility for the amplification of NCIIS harm and, correspondingly, significant obligations in its mitigation. The major platforms operating in Nepal—Meta (Facebook, Messenger, Instagram), TikTok (ByteDance), Alphabet (YouTube), and messaging applications including WhatsApp and Telegram—all maintain policies that nominally prohibit the sharing of non-consensual intimate images. Several have developed technological tools, such as PhotoDNA and dedicated NCIIS reporting pathways, to assist in detection and removal.

However, the practical efficacy of these tools in the Nepali context is constrained by several factors: content moderation resources are not proportionate to user base size in lower-income markets; Nepali-language content moderation capacity is limited; and algorithms optimized for engagement may inadvertently amplify viral spread of harmful content before moderation review occurs. The Stop NCIIS initiative, which involves sharing hashed versions of images with participating platforms to prevent re-upload, is available in some jurisdictions but its implementation in Nepal remains unclear.

Nepal has no statutory framework imposing takedown timelines on platforms operating within its jurisdiction—a gap that contrasts with the European Union's Digital Services Act (2022), the United Kingdom's Online Safety Act (2023), and Australia's Online Safety Act (2021), all of which impose mandatory takedown obligations for various categories of harmful content including NCIIS.

10.2 Government Interventions

The Nepal government's digital regulatory responses have been fragmented and sometimes counterproductive. The government has periodically used its authority under the ETA and the Telecommunications Act to block specific websites and platforms—most notably a temporary ban on TikTok implemented in November 2023, which was subsequently reversed in August 2024 following industry and civil society pressure. Critics argued that broad platform bans were ineffective at preventing harm while imposing disproportionate costs on legitimate users, and that they substituted for the more difficult but necessary work of developing content-specific regulatory frameworks (ICT Ministry, 2024; Aawaaz Nepal, 2024).

The Nepal Information Technology Policy 2072 (2015) and the Draft Data Protection Bill (currently in parliamentary consultation as of 2025) represent elements of a digital governance architecture that, if enacted and implemented effectively, could contribute to NCIIS prevention. However, civil society organizations note that neither instrument specifically addresses NCIIS, and that the Data Protection Bill as currently drafted does not include the consent-centered framework necessary for effective image abuse regulation.

10.3 Digital Literacy Deficits

Digital literacy—encompassing knowledge of privacy settings, safe sharing practices, the permanent nature of digital content, recognition of grooming behaviors, and awareness of legal rights and reporting mechanisms—is widely recognized as a fundamental component of NCIIS prevention. In Nepal, the digital literacy gap is substantial, particularly among first-generation internet users in rural areas, older adults, and individuals from lower socioeconomic backgrounds.

The national education curriculum does not currently incorporate systematic digital safety education at any level. Civil society organizations including Aawaaz Nepal, Youth Hub Nepal, and the Digital Rights Nepal network conduct digital safety workshops, primarily in urban secondary schools, but reach is limited relative to the scale of need. Teacher training programs within the national curriculum have not been systematically updated to include digital safety content (Ministry of Education, Science and Technology, 2023).

11. Prevention and Policy Recommendations

11.1 Legislative Reform

The most urgent priority in Nepal's response to NCIIS is the enactment of a standalone statute specifically addressing image-based sexual abuse. Drawing on the comparative analysis in Section 7.3, such legislation should:

- Define NCIIS with explicit reference to the victim's lack of consent as the central element of the offence, covering both genuine and synthetic (deepfake) intimate images;
- Criminalize both the sharing of intimate images without consent and the credible threat of sharing, with graduated penalties reflecting the severity and context of the conduct;
- Establish mandatory takedown obligations for internet service providers and social media platforms, with specified response timeframes (recommended: 24 hours for emergency removal; 72 hours for confirmed NCIIS content) and penalties for non-compliance;
- Provide for extraterritorial jurisdiction in cases where either the victim or the perpetrator is a Nepali national or resident, regardless of the location of the server or the perpetrator;
- Include specific provisions addressing NCIIS involving minors, with enhanced penalties;
- Establish a right to compensation for victims, including civil causes of action against both individual perpetrators and platforms in cases of demonstrable failure to act promptly;
- Provide procedural protections for victims including anonymity in legal proceedings and prohibition on disclosure of the images to more parties than strictly necessary for evidentiary purposes.

11.2 Institutional and Enforcement Reforms

Legislative reform without accompanying institutional reform is insufficient. The following institutional priorities are identified:

- Establish a dedicated NCIIS / image-based abuse unit within the Nepal Police Cybercrime Investigation Bureau, with specialist training and adequate staffing;
- Create a national NCIIS victim support service, providing legal assistance, psychological counselling, and emergency platform-reporting support, accessible via a single point of contact (hotline and online portal);
- Develop prosecutorial guidelines for NCIIS cases that address evidentiary standards, victim-sensitive interview protocols, and cooperation procedures with foreign platforms and law enforcement agencies;
- Accede to the Budapest Convention on Cybercrime to strengthen international enforcement cooperation;

- Negotiate or update bilateral MLATs with India and other priority countries to specifically address cybercrime evidence-sharing.

11.3 Education, Awareness, and Community Prevention

Prevention requires sustained investment in digital literacy, awareness, and community norm change:

- Integrate digital safety education—covering consent in digital contexts, privacy settings, recognition of grooming behaviors, and reporting mechanisms—into the national secondary school curriculum as a mandatory component;
- Develop teacher training programs that equip educators to deliver digital safety content effectively;
- Fund community-based awareness programs, prioritizing rural areas and first-generation internet user communities;
- Support responsible journalism guidelines on NCIS reporting, including mandatory victim anonymization and perpetrator-focused framing;
- Engage male youth specifically in education programs that address consent, gender equality, and the harm of image-based abuse—recognizing that prevention requires norm change among potential perpetrators as well as awareness among potential victims.

11.4 Platform Accountability

Nepal should develop a platform regulatory framework—as part of the pending Data Protection Bill or as a separate Digital Platforms Act—that establishes clear obligations for platforms operating in Nepal, including NCIS content removal timelines, local grievance officers with authority to act on complaints, transparency reporting on NCIS-related content removal, and cooperation obligations with Nepali law enforcement.

12. Discussion

12.1 Critical Evaluation of Findings

The evidence reviewed in this paper supports several interconnected conclusions. Nepal is experiencing a rapid and ongoing increase in NCIIS that is simultaneously a product of digital expansion, entrenched gender inequality, inadequate legal frameworks, and institutional under-capacity. The harm caused is severe, multi-dimensional, and falls disproportionately upon women and girls from across Nepal's social geography.

The legal framework, while not entirely absent—the ETA provides a basis for prosecution that has been utilized—is structurally inadequate in that it fails to center consent, fails to address the specific harms of NCIIS, and carries penalties insufficient to reflect the seriousness of the offence or to deter prospective perpetrators. The enforcement system is under-resourced and, in many documented cases, attitudinally hostile to victims.

These findings are consistent with the broader South Asian literature (Basu & Bhatt, 2022; Shahbaz, 2021) and reflect patterns observed in other rapidly digitizing societies grappling with the intersection of new technologies and persistent patriarchal structures. Nepal is not uniquely problematic; it is, however, at a critical juncture at which the choices made in the next three to five years regarding legislative reform and institutional investment will significantly determine whether the current trend of increasing harm is arrested or accelerates.

12.2 Future Risks: Deepfakes and Generative AI

The emergence of accessible AI deepfake technology represents the most significant future risk in the NCIIS landscape for Nepal and globally. Tools capable of generating realistic synthetic intimate images are now freely or cheaply available, require no technical expertise to operate, and can create convincing images of real, identifiable individuals who have never created or participated in any intimate photographic content.

The implications for Nepal are acute. The barriers to NCIIS are lowered when a perpetrator need not have access to genuine images: any publicly available photograph of a person can become the raw material for synthetic intimate content. This potentially extends the vulnerable population from individuals who share intimate images within relationships to anyone with a public digital presence—an expanding category as social media use grows. Nepal's legal framework, which

implicitly assumes the existence of genuine images in its framing, would require explicit adaptation to address synthetic content.

International developments are instructive: the United Kingdom's Online Safety Act 2023 was amended in 2024 to specifically criminalize the creation and sharing of deepfake intimate images; similar provisions exist or are under consideration in the European Union and several US states. Nepal should anticipate and legislate for this development proactively rather than reactively.

12.3 Structural Constraints on Reform

It is important to acknowledge structural constraints on the reform agenda outlined in Section 11. Nepal's legislative process is frequently slow and subject to political disruption; the country has experienced significant governmental instability in recent years. Civil society organizations operating in this space are under-resourced relative to the scale of need. International development cooperation—which could potentially fund institutional capacity building—has not prioritized NCIIS specifically.

These constraints argue for a strategic sequencing of reform efforts: prioritizing changes that can be effected through administrative action (police training guidelines, prosecutorial guidance) and platform engagement (voluntary takedown commitment protocols) in the near term, while building political consensus and drafting capacity for the legislative reforms that require parliamentary action.

13. Conclusion

Non-consensual intimate image sharing represents one of the most urgent and underaddressed digital rights and gender justice challenges facing Nepal in the 2023–2025 period. This paper has documented a consistent and significant upward trend in reported cases, identified the structural factors driving this trend—digital expansion, gender inequality, legal inadequacy, and institutional under-capacity—and analyzed the multi-dimensional harm inflicted on victims, who are overwhelmingly women and girls.

The analysis reveals that Nepal's legal response, anchored in the Electronic Transaction Act 2008, is inadequate in its specificity, inadequate in its penalties, and inadequate in its institutional underpinning. The comparison with peer jurisdictions—particularly India's recent legislative developments and the more comprehensive frameworks of the United Kingdom and Australia—demonstrates that effective legal responses to NCIIS are achievable and have been implemented in analogous socio-legal contexts.

The four case studies presented illustrate the human reality behind the statistics: the young woman from Sindhupalchok whose social world was shattered by a former partner's act of betrayal; the dozens of victims of the Kathmandu sextortion network; the school students subjected to covert recording by a trusted teacher; and the activist confronting a synthetic deepfake image of herself. These cases collectively demonstrate that NCIIS in Nepal is not a marginal phenomenon: it is a pervasive threat with devastating consequences for individuals and communities.

The reform agenda proposed in Section 11 is ambitious but achievable. Nepal has the constitutional commitment to gender equality and to digital rights that provides the normative foundation for change. What is required is the political will to enact specific legislation, the institutional investment to support enforcement, and the sustained commitment to education and community norm change that will ultimately address the cultural substrate in which NCIIS thrives.

The emergence of deepfake technology as an accelerant of NCIIS harm adds urgency to this reform agenda. If Nepal acts now—developing consent-centered legislation, building enforcement capacity, and cultivating digital literacy—it can develop legal and institutional architecture that is capable of meeting not only current challenges but those that emerging technologies will present.

If it does not, the human cost will be borne, as it is today, overwhelmingly by the women and girls of Nepal.

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